

FORM 4 — APPLICATION IN EXISTING PROCEEDINGS

Industrial Relations (Tribunals) Rules 2011 — rule 4(2)

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Workers' Compensation and Rehabilitation Act 2003 (Qld)

Matter No: WC/2024/227

BETWEEN:

CORY LEA SHEPHERD (Appellant / Applicant)

and

WORKERS' COMPENSATION REGULATOR (Respondent)

Non-party to whom this application relates: METRO SOUTH HOSPITAL AND HEALTH SERVICE
("MSH")

A. APPLICATION AND ORDERS SOUGHT

A1. TAKE NOTICE that the Appellant applies to the Commission under rule 64G(1) of the Industrial Relations (Tribunals) Rules 2011 for a decision about the objection of MSH dated 5 June 2026 (ref K-LM26/729) to the Appellant's Form 29 – Notice of Non-Party Disclosure, sealed by the Industrial Registry on 22 April 2026 ("the Notice").

A2. The orders sought are set out in the draft order filed with this application. In summary: (a) the objections to Items 3(a), 3(b), 8, 9, 10 and 19 be overruled, and the documents described in Schedule A be produced within 14 days in native electronic format; (b) the spreadsheet of recorded MET calls for 17–18 March 2024, identified in MSH's response to Items 1 and 2, be produced; (c) production under Items 8 and 9 be subject to the confidentiality regime in the draft order; (d) the order concerning Item 19 take effect seven days after written notice to Together Queensland, which has liberty to apply; (e) MSH file and serve a verification affidavit of an officer with direct knowledge of the searches undertaken, in the terms of the draft order; (f) each party bear its own costs of the application, in accordance with rule 64G(3); and (g) liberty to apply as to the mechanics of production.

B. JURISDICTION AND TIMELINESS

B1. The Notice was sealed by the Industrial Registry on 22 April 2026 and served on MSH the same day. By the direction of the Commission communicated on 22 May 2026, MSH was to provide any objections to the Notice by 4:00 pm on Friday, 5 June 2026.

B2. MSH's objection was served by email at 3:02 pm on 5 June 2026. By rule 64F, the objection operates as a stay of the Notice. By rule 64G(1), a party may, within seven days of service of an objection, apply to the Commission for a decision about the objection. This application is filed on 12 June 2026, within time.

B3. By rule 64G(2), the Commission may make any order it considers appropriate, including an order lifting the stay, varying the Notice, or setting aside the Notice or part of it.

C. THE CHARACTER OF MSH'S RESPONSE — WHAT IS, AND IS NOT, IN DISPUTE

C1. MSH's response of 5 June 2026 takes three forms, and the greater part of it is not in dispute.

C2. First, MSH has produced documents in answer to Items 6, 11, 12 (in part), 13, 15 and 16. The Appellant acknowledges that production.

C3. Second, MSH answers that documents responsive to Items 1–2, 3(c), 4, 5, 7, 14 and 20 do not exist or are not retained — in the case of Items 1–2, by reason of a system upgrade. Each such answer records that a search was undertaken. Those answers are addressed in Sections G and H.

C4. Third, MSH objects to Items 3(a), 3(b), 8, 9, 10, 12 (balance), 17, 18 and 19, on grounds within rule 64E(4)(a) (expense and inconvenience), (b) (relevance), (c) (particularity), and (e)–(f) (privacy and effect on persons).

C5. The Appellant does not press Items 12 (balance) and 17. The Appellant does not press Item 18, upon MSH’s confirmation in the verification affidavit sought that destruction of the record the subject of that Item is conceded. What remains — Items 3(a), 3(b), 8, 9, 10 and 19, with Item 20 as re-specified in Schedule A — is the confined set of records the pleaded issues require.

D. THE ROLE OF THE NON-PARTY AND THE MATTER IN ISSUE

D1. The appeal is brought under s 550(4) of the Workers’ Compensation and Rehabilitation Act 2003 against the Respondent’s review decision. The Appellant bears the onus of establishing that he sustained an injury within s 32 of that Act — including that his employment was a significant contributing factor to the injury, and that the injury did not arise out of, or in the course of, reasonable management action taken in a reasonable way (s 32(5)(a)). The Appellant accepts that onus and seeks to discharge it on records of fact rather than contested recollection.

D2. That onus shapes this application. A party required to prove the character of management conduct cannot fairly be left without the records of that conduct, where those records exist only in the systems of the entity whose conduct is in question. MSH is not a stranger to this proceeding: it is the employing authority whose management action is the subject of s 32(5)(a), and the sole custodian of the systems — mail, rostering, attendance, payroll and human-resources case management — in which that conduct was recorded as it occurred.

D3. MSH’s response restates the matter in issue as confined to “the consecutive shifts of 17–18 March 2024.” That is not the pleaded case. The Appellant’s Amended Statement of Facts and Contentions, filed 8 April 2026 pursuant to leave, pleads a course of management conduct between June 2023 and June 2024 comprising three stressors: a hostile course of management conduct, including the Line Manager’s erratic physical presence (Stressor 1(a)); systemic failures of remuneration between February and April 2024 (Stressor 2); and the rostering of consecutive shifts separated by a 7-hour break on 17–18 March 2024 (Stressor 3). The 17–18 March events are the anchor of the pleaded period, not its perimeter.

D4. The Respondent’s Form 24 response dated 18 February 2026 admits the 7-hour break (Response ¶1) and admits that the applicable industrial instruments require a minimum break of 10 hours between shifts, or 8 hours by written agreement (Response ¶3). The Respondent admits the contents of the review decision dated 24 October 2024 — which found the rostering of those two shifts to be unreasonable management action — while submitting that the appeal is a hearing de novo and that the question is for the Commission to determine (Response ¶34, responding to Notice ¶37). The Appellant relies on that finding as persuasive material identifying the matters in issue; the Commission will determine the question afresh, on the records this Notice seeks.

D5. Items 8 and 9 — the Line Manager’s system sign-in export and access-control records — are directly relevant in the sense the rules require: they tend to prove or disprove allegations in issue. Two such allegations are live on the pleadings. First, Stressor 1(a) pleads, and the Respondent contests, the Line Manager’s erratic physical presence; the records measure presence. Secondly, the Respondent denies the pleaded pay disparity on the footing that “the roster was equitable” (Response ¶39, responding to Notice ¶¶42–45); the same records test that assertion. No broader use is made of these Items.

E. EXPENSE AND INCONVENIENCE (RULE 64E(4)(a))

E1. The expense ground rests on the asserted need for Chief Executive approval, engagement of eHealth Queensland, and diversion of resources from the delivery of health care.

E2. The Items as pressed are confined: keyword searches of two identified custodians' mailboxes across defined windows (Items 3(a), 3(b), 10); two system-generated exports of a kind produced in the ordinary course for audit purposes (Items 8, 9); a two-day window of correspondence with a named industrial organisation (Item 19); and a re-specified, subject-confined Item 20. Rule 64I separately entitles MSH to its reasonable expenses of production, on notice given within one month.

E3. As to what production of records of this class involves in practice, see Section G.

F. ITEMS PRESSED

F1. The Items pressed, the records sought and the windows are set out in Schedule A. The matter in issue about which each Item is directly relevant is stated, Item by Item, in Annexure B, in accordance with rule 64C(1).

F2. As to the windows for Items 8 and 9: the irreducible floor is 16–19 March 2024, anchored to the admitted 7-hour break (Response ¶1). The continuous window sought (1 March – 30 June 2024) is what allows the records to be read neutrally: a continuous series across the roster periods either side of those events, scored against the ordinary Monday-to-Friday working pattern, is pattern evidence. A hand-picked set of dates would invite the objection it avoids.

G. THE RESPONDENT'S DISCLOSURE OF 11 JUNE 2026 — THE RECORDS EXIST AND PRODUCTION IS AVAILABLE

G1. On 11 June 2026 at 11:03 am, the Respondent made supplementary disclosure to the Appellant of a ten-page bundle, described in its covering email as documentation “received through Notice of Non-Party Disclosure request and conferencing.” Three features of that bundle bear directly on this application. A single page of the bundle is annexed (Annexure C); the bundle as a whole can be provided to the Commission on request.

G2. The records exist. The bundle reproduces the complete electronic record of the Appellant's leave form 15480560 in MSH's myHR system — the request, the certification chain, and the Attachments, Comments, Process Flow and History tabs, the last with timestamps to the second. The records sought under Items 8 and 9 are system records of the same character, from the same environment. The enclosures to MSH's own response of 5 June 2026 include a myHR report generated from a native spreadsheet. These are extant, exportable system records.

G3. Production is available without the apparatus the objection describes. Documents of this class, from these custodians, were collected and provided to the Respondent in the ordinary course of the Respondent's engagement with MSH officers — without, so far as appears from the material, Chief Executive approval, the engagement of eHealth Queensland, or any diversion from the delivery of health care. The expense ground falls to be assessed against what production has in fact involved.

G4. The breadth of searchable material is confirmed. Annexure C is an email of 16 May 2024 sent by an MSH human resources officer, addressed to the Director and another officer and copied to three further officers. It was not addressed to the Appellant; it is internal MSH correspondence of precisely the class sought by Items 3(a), 3(b) and 10. It exists; it was located; and it was produced — to the Respondent. The answer that documents responsive to Item 20 “do not exist” cannot stand with the existence of internal responsive correspondence of this kind. Schedule A re-specifies Item 20 by subject and window, so that no question of particularity remains.

H. VERIFICATION OF THE NON-EXISTENCE ANSWERS

H1. Each “does not exist / not retained” answer in MSH's response records that a search was undertaken. The Appellant seeks no more than that those answers be placed on affidavit by an officer with direct knowledge of the searches: the systems searched, the searches undertaken, and the basis for each statement.

H2. Two specific matters require reconciliation in that affidavit. First, as to Item 14: the date on which a Queensland Health mobile device was issued to the Line Manager, and whether responsive communications exist on MSH systems. Secondly, as to Item 16: the process references to which the produced enclosures correspond — the report produced under Item 11 covers 1 February to 31 May 2024, and process references appearing in material produced under Item 16 do not appear in that report.

H3. Verification in these terms is the ordinary means of giving the Commission, and the Appellant, a basis on which the answers can be relied upon. It asks nothing of MSH that its response does not already assert.

I. ITEMS NOT PRESSED

I1. Items 12 (balance) and 17 are not pressed. Item 18 is not pressed upon confirmation, in the verification affidavit, that destruction of the record the subject of that Item is conceded. The Appellant has confined this application to the records the pleaded issues require; the concessions are part of that confinement.

J. DISPOSITION, MATERIAL RELIED UPON, AND SERVICE

J1. The Appellant relies upon: this application; the draft order filed with it; the Form 29 – Notice of Non-Party Disclosure sealed 22 April 2026; MSH’s response of 5 June 2026 (ref K-LM26/729), which is before the Commission pursuant to the direction of 22 May 2026; the Respondent’s Form 24 response dated 18 February 2026; the Appellant’s Amended Statement of Facts and Contentions filed 8 April 2026; and Annexures B and C.

J2. This application and the draft order are served on the Respondent and on MSH. A copy is provided to Together Queensland, as the industrial organisation concerned by Item 19, which has liberty to apply under the draft order.

J3. The Appellant asks that the objections be determined on the papers, or listed for mention, as the Commission considers appropriate.

Applicant’s details: Cory Lea Shepherd (self-represented) · 15 Edmond Street, Coomera QLD 4209 · 0417 400 227 · coryshepherd1@hotmail.com

Dated: 12 June 2026

Signature of Applicant: _____

SCHEDULE A — ITEMS PRESSED AND TERMS OF PRODUCTION

Item	Records sought	Window
3(a)	Results of a keyword search of the Line Manager's mailbox for complaint correspondence concerning switchboard staffing, rostering or conduct	1 February – 30 April 2024
3(b)	Results of a keyword search of correspondence between the Line Manager and the Director concerning escalation of the Appellant's complaints	1 February – 30 April 2024
8	Active Directory / Entra sign-in export for the Line Manager's account	1 March – 30 June 2024 (irreducible floor 16–19 March 2024)
9	Swipe / access-control logs for the Line Manager's credential for the collocated office	1 March – 30 June 2024 (floor 16–19 March 2024)
10	Records of management discussion concerning the Appellant, from the Line Manager and Director custodians	1 March – 30 April 2024
19	Correspondence with Together Queensland concerning the rostering terms proposed by MSH	17–18 March 2024
20 (re-specified)	Records of MSH's human-resources and operational response to the disclosures made on 13–15 May 2024, by subject	13 – 31 May 2024

Terms: production in native electronic format where the record is electronic. The exclusions stated in the Notice (legal professional privilege; s 65 Public Interest Disclosure Act 2010; personal contact details) continue to apply. Production under Items 8 and 9 is subject to the confidentiality regime in the draft order. Order (b) seeks the MET-call spreadsheet for 17–18 March 2024 identified in MSH's response to Items 1 and 2 (production not opposed).

**ANNEXURE B — STATEMENT OF THE MATTER IN ISSUE, ITEM BY ITEM
(RULE 64C(1))**

B-3(a), B-3(b). Stressor 1 pleads a hostile course of management conduct, including the handling and escalation of the Appellant’s complaints within February–April 2024. The Respondent’s Form 24 response denies the pleaded facts concerning the handling of complaints and delegate support (including Response ¶¶9 and 19). The mailbox records sought tend to prove or disprove how the complaints were received, escalated and acted upon within the pleaded period.

B-8. Stressor 1(a) pleads the Line Manager’s erratic physical presence; the Respondent contests it, and denies the pleaded pay disparity on the footing that “the roster was equitable” (Response ¶39, responding to Notice ¶¶42–45). Sign-in records measure presence against the rostered pattern. The floor of 16–19 March 2024 is anchored to the admitted 7-hour break (Response ¶1).

B-9. The same matters in issue as Item 8, measured by physical access records for the collocated office.

B-10. Stressors 1 and 2 plead management decisions concerning the Appellant within March–April 2024, including decisions affecting his complaints and entitlements. Records of management discussion between the Line Manager and Director custodians tend to prove or disprove the character of that management action (s 32(5)(a)).

B-19. The Respondent denies the pleaded facts concerning delegate support, on grounds including that support was given and information provided (Response ¶19). MSH’s correspondence with Together Queensland on 17–18 March 2024 concerning the rostering terms proposed by MSH tends to prove or disprove those denials, in the keystone window.

B-20. Stressor 1 pleads the institutional response to the disclosures made on 13–15 May 2024. The direction of 15 May 2024 concerning the Appellant’s email of that day is admitted (Response ¶21), its connection to the disclosures contested. Records of MSH’s human-resources and operational response within 13–31 May 2024 tend to prove or disprove the character of that response (s 32(5)(a)).

ANNEXURE C — EXTRACT FROM THE RESPONDENT'S DISCLOSURE TO THE APPELLANT

OF 11 JUNE 2026 (page 7 of 10): email of Elise McGinley, 16 May 2024, 11:43 AM

Renee Matheson

From: Elise McGinley <Elise.McGinley@health.qld.gov.au>
Sent: Thursday, 16 May 2024 11:43 AM
To: Tammy Reese; Tracey Smith
Cc: Brendon Punch; Mack Pritchard; Adriana McNamee
Subject: FW: Urgent: Issues Affecting Workplace Safety and Conduct Logan Hospital Switchboard
Attachments: Chloe Taylor scc-complaint-form.docx

Hi Tammy and Tracey,

Please see below email and attached complaint from Cory Shepherd.

Cory sent his complaint directly to the Ethical Standards Unit who are currently awaiting further documentation from him.

Once ESU have received all of the information and finalised their assessment we will reach out to discuss next steps.

Kind regards
Elise

Elise McGinley

A/Senior Consultant

Human Resources

Logan and Beaudesert Health Service

[Metro South Health](#) | 

e. Elise.McGinley@health.qld.gov.au

(07) 2891 5903 | Mon - Fri



Metro South Health recognises and pays respect to the traditional custodians of the land and waters – the Yugambeh, Quandamooka, Jaggera, Ugarapul, and Turrbal peoples – and to Elders, past, present, and emerging.

From: LBH_HR
Sent: Wednesday, May 15, 2024 3:41 PM
To: Brendon Punch ; Elise McGinley ; Adriana McNamee
Subject: FW: Urgent: Issues Affecting Workplace Safety and Conduct Logan Hospital Switchboard

Please see email from Corey Shephard to ESU and CO Complaints regarding Chloe Taylor.

Thanks

Michelle Harrison

Support Officer

Human Resources

Logan and Beaudesert Health Services